

Tahanie A. Aboushi, Esq. (TA-6529)
The Aboushi Law Firm, PLLC
1441 Broadway, Fifth Floor
New York, NY 10018
Telephone: (212) 391-8500
Facsimile: (212) 391-8508
Attorneys for Plaintiffs

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X		
Mervat Soliman and Mohammed Soliman,	:	Docket No.:
	:	
Plaintiffs,	:	
-against-	:	COMPLAINT
	:	
The City of New York and The New York City Police	:	TRIAL DEMANDED BY
Department, Police Officer Jared Ock and New York City	:	JURY
Police Officers "John Does 1-10",	:	
Defendants.	:	
-----X		

Plaintiffs, MERVAT SOLIMAN ("MERVAT") and MOHAMMED SOLIMAN
("MOHAMMED") by and through their attorneys, THE ABOUSHI LAW FIRM, PLLC,
complaining of the Defendants, respectfully allege, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought by Plaintiff, Mervat, for the forcible removal of her religious garments for a public photograph taken during post arrest processing.
2. The City of New York and the New York Police Department discretionarily decide whether or not women of the Muslim faith who cover their hair with a headscarf, must remove their scarf for the "mug" shot.
3. Plaintiff brings this action for injunctive and declaratory relief against the Defendants and for monetary damages against the Defendants to redress the violation of Plaintiff's civil

and religious rights under the United States Constitution and the Constitution of the State of New York.

4. Mervat and Mohammed, (collectively “Plaintiffs”) bring the instant suit for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
5. A Notice of Claim was filed and served on March 27, 2015 and a 50-h was subsequently held on August 4, 2015.

JURISDICTION

6. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(3) and (4) and the aforementioned statutory and constitutional provisions.
7. This Court has supplemental jurisdiction over claims under the laws of New York State and of the City of New York under 28 U.S.C. §1391(b).
8. This Court is authorized to grant declaratory and injunctive relief pursuant to 28 U.S.C. § 1367, 28 U.S.C. §§2201 and 2202 as well as Rules 57 and 65 of the Federal Rules of Civil Procedure.

VENUE

9. Venue is proper in the Eastern District of New York under 28 U.S.C. §1391(b) as a substantial part of the events or omissions giving rise to the claim occurred, or a substantial part of property that is the subject of the action is situated in the Eastern District.

THE PARTIES

10. Plaintiffs Mervat and Mohammed are both residents of Queens, State of New York.
11. Defendant City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
12. Defendant City of New York maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.
13. That at all times hereinafter mentioned, Defendant Police Officers “John Does 1-10” (Collectively, “Defendant Police Officers”) were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.
14. Plaintiffs will amend this complaint to name the Defendant “John Doe” Police Officers as their identities can be established to a reasonable certainty.
15. That at all times relevant to this action, the Defendant Police Officers either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.
16. Each and all of the acts of the Defendant Police Officers alleged herein were done by said defendants while acting within the scope of their employment by Defendant City of New York.

17. Each and all of the acts of the Defendant Police Officers alleged herein were done by said defendants while acting in furtherance of their employment by Defendant City of New York.

STATEMENT OF FACTS

18. Mervat is Mohamed's mother. Mervat and Mohamed are Muslim and Mervat wears the Hijab.

19. On January 7, 2015 Mervat was parking her vehicle in front of her home located at 6058 70th Avenue, Ridgewood NY 11385, when her neighbor Faith Harrison ("Harrison") and her daughter, Stephanie Vasiliou ("Vasiliou") began harassing her.

20. Mervat has filed numerous police reports against said parties for consistent harassment and assault and police officers have refused to follow up with reports and make arrest.

21. Mervat has also made several complaints via 311 regarding Vasiliou and Harrison's bigotry and racially motivated harassment and assaults and the City has failed to pursue said complaints and stop said harassments.

22. Mervat has contacted the police regarding Vasiliou and Harrison spitting at her, hitting her and verbally assaulting her on prior occasions and Police Officers at the 104 Precinct consistently refused to investigate her claims and arrest Vasiliou and/or Harrison.

23. On January 7th, Mervat's husband saved her a parking spot. As Mervat pulled up to park her car, Harrison pulled into the spot and gave her the middle finger and cursed at Mervat calling her an asshole, terrorist and told her to go back to her country.

24. Harrison then got out of her car and approached Mervat's vehicle and continued to verbally abuse and berate her. Mervat then got out of her car and Harrison pushed her.

25. Mohamed then came out of the home because he heard his mother scream. Vasiliou then came out of her home and punched Mervat in the face and chest. Mervat blacked out from the punch and needed medical attention.

26. Harrison went to her car and upon information and belief, called the police.

Approximately 4 officers appeared at the premise including but not limited to Officer Jared Ock.

27. The officers observed Mervat lying on the ground and inquired as to her injuries.

Mohamed informed the officers that Harrison and Vasiliou pushed and punched his mother in the face and chest.

28. Without asking any questions Officer Ock arrested Mohamed. When Mohamed asked why he was being arrested, Officer Ock told him to “shut the fuck up”.

29. Defendant Ock twisted Plaintiff Mohammed’s arms behind Plaintiff’s back thereby causing significant and severe pain to both the hands and arms of Plaintiff Mohammed.

30. Officer Ock and other officers went to speak to Harrison and Vasiliou.

31. An ambulance was called and EMT placed Mervat in the ambulance. While being placed in the Ambulance, an officer told the EMT that Mervat was faking it and she did not need medical attention and she was a criminal.

32. Before entering the ambulance, a Police Officer removed Mervat’s veil.

33. Mervat asked the EMT and the Officer where her veil was and stated she needed something to cover her hair.

34. The EMT and NYPD officer refused to give her something to cover her hair and did not return her veil to her.

35. An officer then handcuffed Mervat via her hands and her feet. The NYPD officer then berated Mervat screaming that she was a fake and was wasting everyone's time and that he would make her pay for it. The NYPD officer also told the EMT that nothing had happened to Mervat and that she was just trying to avoid the arrest.
36. Mervat was taken to Wyckoff Hospital. Upon arriving to the hospital, Mervat was aggressively handled by the escorting officer and was shoved into her room by him.
37. While there, Mervat requested something to cover her hair with. A Nurse brought her a pillowcase and Mervat was permitted to cover her hair.
38. The officer tightened the handcuffs on Mervat's hand and refused to loosen it to allow movement of her wrist.
39. At one point Mervat asked to use the restroom and the officer refused. For several hours the Officer refused to permit Mervat to use the restroom. Upon the pleading of hospital staff, Mervat was permitted to use the restroom.
40. A male officer standing outside her room refused to permit Mervat to completely shut the bathroom door. He then began banging on the bathroom door while Mervat was inside. The male officers demanded a nurse barge in on Mervat and pull her out of the bathroom and a Nurse did just that. She barged in on Mervat with her pants down and told her she had to leave the restroom. Mervat was violated and exposed.
41. Around 8:00 P.M. Mervat was discharged and transported to the 104 precinct. Mervat was searched by an officer who forced her to remove her jacket and made her cut the collar of her shirt with a scissor.

42. The officer shoved, pushed and aggressively handled Mervat. Mervat suffers from Rheumatoid Arthritis, diabetes and hypertension, which she informed the arresting and processing officers of.
43. In 20-degree weather, Mervat was neither given a blanket nor was she permitted to wear her jacket.
44. Mervat requested to contact her family to let them know where she was several times throughout the ordeal and she was refused.
45. Mervat was photographed while wearing the pillowcase to cover her head. Mervat requested something to cover her neck and chest, which must be covered pursuant to her religious obligation.
46. The officers refused.
47. Mervat was placed in a cell for several hours without food, heat or her veil. Once Mervat began to shiver from how cold she was, an Officer told her to go to the bathroom and wash her hands with hot water.
48. After midnight on January 8th Mervat went to the bathroom and felt dizzy. She informed the officer she was not feeling well. She washed her face and drank water but began feeling faint. In an effort to warm herself, she wrapped bathroom tissue around her neck and shoulders. The Officers permitted her to do so and did not force her to remove the tissue.
49. Upon exiting the bathroom Mervat experienced chest pain. She informed the officers that she did not feel well and that her chest felt tight and she could not breathe. The officer called her a fake and a liar and attempted to shove Mervat towards the cell. Mervat fainted and she was taken back to Wycoff hospital.

50. Mervat was taken back to Wycoff Hospital for evaluation.

51. Upon being seen by a doctor and cleared for discharge, Mervat was taken to central booking for further processing. While at Central Booking, Mervat was given her jacket and veil back. Mervat put her scarf on while in her cell.

52. Officers forced Mervat to remove her veil again.

53. Mervat informed the officers of her religious obligation to which they responded “this is America, we don’t care”.

54. Mervat pleaded with the officers to at least permit a female officer to photograph her or that she be photographed in a private room. Both requests were denied. Instead Mervat’s photograph was taken in the well of central booking in plain sight of multiple male officers and staff.

55. The City of New York and the New York Police Department knew or should have known of the discrimination and violation of constitutional rights in forcing Mervat to remove her religious attire. Furthermore, after becoming aware several times of the religious sensitivity of the situation on both occasions, The City of New York and the New York Police Department failed to take any preventative measures to minimize the damage to Mervat by forcing her to remove her veil in the presence of men.

56. The criminal complaints brought against Plaintiffs were dismissed. Plaintiffs had to appear in court a minimum of three (3) times and were subject to community service of fourteen hours prior to the matter being dismissed.

CLAIMS AS TO PLAINTIFF MERVAT SOLIMAN

57. The City of New York and the New York Police Department knew or should have known of the discrimination and violation of constitutional rights in forcing Plaintiff to remove her religious headscarf.
58. After becoming aware several times of the religious sensitivity of the situation on both occasions, The City of New York and the New York Police Department failed to take any preventative measures to minimize the damage to Plaintiff by forcing her to remove her headscarf in the presence of men and to photograph her without her headscarf on.
59. Plaintiff was not shown or directed to any text of any regulation of the New York City Police Department that states that religious garments/gear must be removed for mug shots or other public and/or governmental photographs.
60. Upon information and belief there is no written regulation or provision in the Patrol Guide or other regulations followed by the NYPD that states that religious garments/gear must be removed prior to the taking of any required photographs.
61. Upon information and belief, there have been instances where female Muslim women who wear the religious headscarf have been permitted to wear their headscarves during the photograph portion post arrest.
62. There is no legitimate governmental interest in forbidding religious garments/gear to be worn during the time of processing post arrest including mug shots and fingerprinting.
63. There is no legitimate governmental interest in compelling the removal of religious garments/gear during the time of processing post arrest including mug shots and fingerprinting.

64. There is no legitimate governmental interest in compelling civilians to violate their religious convictions by removing religious garments/gear in order to be photographed or otherwise processed by the NYPD.
65. Defendant Police Officer had no legitimate or cognizable reason for aggressively and falsely arresting Plaintiff Mervat as she was a victim and seeking protection from physical and verbal assault. At no point before, during, or after the Defendant Police Officer's attack of Plaintiff Mervat throughout her arrest, transport to the hospital, stay at the hospital, transport to central booking and stay at central booking, did any of the other Defendant Police Officer's attempt to stop, obstruct, or otherwise prevent Defendant Police Officer from assaulting, berating, discriminating and violating Plaintiff Mervat.
66. Upon information and belief, shortly thereafter, Defendant Ock knowingly and willfully directed Defendant Police Officer to prepare a criminal complaint falsely alleging that Plaintiff Mohammed had violated PL 120.00 Assault in the Third Degree, PL 260.10 Endangering the Welfare of A Child and 240.26, Harassment in the Second Degree.
67. Plaintiff was the victim of assault, harassment, criminal mischief and a hate crime. Mervat was pushed and punched in the face by Harrison and Vasiliou.
68. Plaintiff Mervat was visibly injured and required medical attention.
69. Defendant Ock perpetuated Harrison and Vailiou's hate crime against Plaintiff Mervat by engaging in discriminatory policing, refusing to arrest Plaintiff Mervat's assailants and creating false reports to warrant her arrest.
70. As a result of the foregoing, Plaintiff Mervat sustained, *inter alia*, physical injuries, mental injuries, emotional distress, embarrassment, humiliation, and deprivation of her constitutional rights.

71. As a result of the Defendants' constitutionally violative conduct, Plaintiff Mervat demands a judgment from Defendants in a sum of money to be determined at trial.

CLAIMS AS TO PLAINTIFF MOHAMED SOLIMAN

72. Plaintiff Mohamed had not resisted and was not resisting Defendant Ock's attack and arrest.

73. On information and belief, Defendant Ock applied force against Plaintiff Mohammed without cause or reason.

74. Defendant Ock had no legitimate or cognizable reason for aggressively and falsely arresting Plaintiff Mohammed as he was lawfully present at the subject location. At no point before, during, or after Defendant Ock's attack of Plaintiff Mohamed did any of the other Defendant Police Officer's attempt to stop, obstruct, or otherwise prevent Defendant Ock from doing same.

75. Upon information and belief, shortly thereafter, Defendant Ock knowingly and willfully directed Defendant Police Officer to prepare a criminal complaint falsely alleging that Plaintiff Mohammed had violated PL 120.00 Assault in the Third Degree, PL 260.10 Endangering the Welfare of A Child and 240.26, Harassment in the Second Degree.

76. Defendant Ock had no basis whatsoever to create such blatantly false charges. Defendant Ock perpetuated Harrison and Vailiou's hate crime against Plaintiff Mervat by engaging in discriminatory policing, refusing to arrest Plaintiff Mervat's assailants and creating false reports.

77. Defendants supported Harrison and Vasiliou in obtaining an Order of Protection against Plaintiff Mohammed, putting him at the mercy of bigots and Islamophobes who at any time can invoke his arrest.

78. A few weeks after January 8th 2015, Vasiliou made a complaint that Plaintiff Mohammed allegedly “made fun of her” and of course, Police Officers of the 104th precinct without investigating such a blatantly false accusation, arrested Plaintiff Mohammed. Defendant Police Officers’ actions are discriminatory, selective and an absolute abuse of power.
79. As a result of the foregoing, Plaintiff Mohammed sustained, *inter alia*, physical injuries, mental injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.
80. As a result of the Defendants' constitutionally violative conduct, Plaintiff Mohammed demands a judgment from Defendants in a sum of money to be determined at trial.

**FIRST CLAIM FOR RELIEF AS TO PLAINTIFF MERVAT
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

81. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
82. All of the aforementioned acts of the Defendant Police Officers, their agents, servants and employees, were carried out under the color of state law.
83. The aforementioned individual Defendants in their capacities as officers carried out the acts complained of, with all of the actual and/or apparent authority attendant thereto.
84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
85. The conduct alleged to have been committed by Defendants targets religious exercise and violates Plaintiff Mervat’s constitutional right to the free exercise of religion by requiring her to remove her headscarf.

86. Such practice has the principle effect of excluding sincere religious observers such as Plaintiff Mervat. Individuals who do not have sincere religious convictions are not subject to removing their religious garments/gear upon command. As a result, Defendants' practice is unconstitutional and violates Plaintiff Mervat's first amendment rights.
87. The Fourteenth Amendment to the United States Constitution, which prohibits the deprivation of "life, liberty or property without due process of law", guarantees to each civilian in state custody the substantive right to be free from harm and from undue restraints on their liberty.
88. Defendants have deprived Plaintiff Mervat of her liberty without due process of law by failing to provide adequate religious accommodations to prevent violations of Plaintiff Mervat's religious freedom.
89. Plaintiff Mervat has been harmed by Defendants' violation of her rights under the Fourteenth Amendment. Plaintiff Mervat's harms include, but are not limited to, psychological and emotional damage during the course of her confinement and interaction with the NYPD on said date.
90. As a result of the above constitutionally impermissible conduct, Plaintiff Mervat was caused to suffer personal injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to her reputation and standing within her community.
91. As a result of Defendants' impermissible conduct, Plaintiff Mervat demands judgment against Defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

92. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

93. As a result of the aforesaid conduct by Defendants, Plaintiffs Mervat and Mohammed were subjected to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

94. As a result of the above constitutionally impermissible conduct, Plaintiffs Mervat and Mohammed were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of property, damage to property, legal expenses and damage to their reputation and standing within their community.

95. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. 1983

96. Plaintiffs Mervat and Mohammed repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

97. The Defendants caused a criminal proceeding to be brought against Plaintiffs Mervat and Mohammed after unlawfully arresting them on January 07, 2015.

98. Defendants procured this criminal proceeding through the knowing and willful presentation of false allegations regarding the conduct of Plaintiffs Mervat and

Mohammed to the office of the Queens County District Attorney.

99. The criminal proceeding procured by Defendants against Plaintiffs Mervat and Mohammed was terminated in their favor, with a full dismissal of all charges against them.
100. The Defendants lacked probable cause to initiate a criminal proceeding against Plaintiffs Mervat and Mohammed.
101. The Defendants acted with malice in initiating a criminal proceeding against Plaintiffs Mervat and Mohammed.
102. Plaintiffs Mervat and Mohammed were forced to appear in court on at least three (3) occasions to answer the criminal proceeding that Defendants maliciously caused to be brought against them.
103. As a result of the aforementioned conduct of the individual Defendants, Plaintiffs Mervat and Mohammed's constitutional rights were violated.
104. As a result of the above constitutionally impermissible conduct, Plaintiffs Mervat and Mohammed were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to their reputation and standing within their community.
105. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

FOURTH CLAIM FOR RELIEF
FAILURE TO INTERVENE UNDER 42 U.S.C. §1983

106. Plaintiffs Mervat and Mohammed repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

107. The Defendants had an affirmative duty to intervene on Plaintiffs Mervat and Mohammed's behalf to prevent the violation of their constitutional rights.
108. The individual Defendants failed to intervene on Plaintiffs Mervat and Mohammed's behalf to prevent the violation of their constitutional rights despite having had a realistic opportunity to do so.
109. The individual Defendants failed to intervene on Plaintiffs Mervat and Mohammed's behalf to prevent the violation of their constitutional rights despite having substantially contributed to the circumstances within which Plaintiffs Mervat and Mohammed's rights were violated by their affirmative conduct.
110. As a result of the aforementioned conduct of the individual Defendants, Plaintiffs Mervat and Mohammed's constitutional rights were violated.
111. As a result of the above constitutionally impermissible conduct, Plaintiffs Mervat and Mohammed were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to their reputation and standing within their community.
112. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

113. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
114. Defendant Police Officer John Does and Ock used excessive force in arresting Plaintiffs Mervat and Mohammed.

115. Defendant Police Officer used excessive force against Plaintiff Mervat in the course of her arrest, causing her to sustain bruises and abrasions and to suffer significant pain and injury.
116. Defendant Police Officer used excessive force in handcuffing Plaintiffs Mervat and Mohammed in the absence of probable cause for their arrests.
117. At no point during the above-mentioned actions did the circumstances presented to the Defendants support any of the above-mentioned applications of force on Plaintiffs Mervat and Mohammed.
118. Plaintiffs Mervat and Mohammed were subjected to excessive force in violation of their rights as guaranteed under the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.
119. As a result of the above constitutionally impermissible conduct, Plaintiffs Mervat and Mohammed were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to their reputation and standing within their community.
120. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demands judgment against Defendants in a sum of money to be determined at trial.

PENDANT STATE CLAIMS

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW **FALSE ARREST**

121. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
122. Defendants through their employees, servants and/or agents, caused the arrest of

Plaintiffs.

123. Plaintiffs Mervat and Mohammed were subjected to an illegal, improper and false arrest by said Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated for approximately twenty-four hours prior to arraignment and release.
124. The aforesaid actions by Defendants led to a deprivation of Plaintiffs' rights as secured under New York State law.
125. As a result of the aforementioned conduct, Plaintiffs Mervat and Mohammed have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.
126. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE IMPRISONMENT

127. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
128. As a result of the foregoing, Defendants falsely imprisoned Plaintiffs Mervat and Mohammed, restricted their liberty, they were put in fear for their safety, and were humiliated.
129. Plaintiffs Mervat and Mohammed were conscious of said confinement and did not consent to same.
130. The confinement of Plaintiffs Mervat and Mohammed were without probable cause and was not otherwise privileged.

131. As a result of the aforementioned conduct, Plaintiffs Mervat and Mohammed have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

132. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

133. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

134. The aforementioned actions of Defendants' employees, servants and/or agents placed Plaintiffs Mervat and Mohammed in apprehension of imminent harmful and offensive bodily contact.

135. As a result of the conduct of Defendants' employees, servants and/or agents, Plaintiffs Mervat and Mohammed have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

136. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

137. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

138. Defendants' employees, servants and/or agents touched Plaintiffs Mervat and

Mohammed in a harmful and offensive manner.

139. Defendants' employees, servants and/or agents did so without privilege or consent from Plaintiffs Mervat and Mohammed.

140. As a result of the conduct of Defendants' employees, servants and/or agents, Plaintiffs Mervat and Mohammed have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

141. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

**FIFTH CLAIM UNDER NEW YORK STATE STATUTES
RELIGIOUS DISCRIMINATION AS TO PLAINTIFF MERVAT**

142. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

143. The Defendants' unconstitutional and illegal acts, conditions and practices described herein violate Article I, Section 3 of the Constitution of the State of New York because it does not allow Plaintiff Mervat the free exercise and enjoyment of religious worship as construed by the Courts of New York State.

144. The purported governmental interest in requiring all religious garb to be removed for the purposes of being photographed or otherwise processed post arrest does not justify the violations of fundamental rights afforded to Plaintiff Mervat under the Constitution of the State of New York.

145. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS**

146. Plaintiffs MERVAT AND MOHAMMED repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
147. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.
148. The aforementioned conduct was committed by employees, servants and/or agents of Defendants while acting within the scope of their employment.
149. The aforementioned conduct was committed by employees, servants and/or agents of Defendants while acting in furtherance of their employment.
150. The aforementioned conduct was unnecessary, intentional and done for the sole purpose of causing severe emotional distress to Plaintiffs Mervat and Mohammed.
151. As a result of the aforementioned conduct, Plaintiffs Mervat and Mohammed suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.
152. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial

**SEVENTH CLAIM FOR RELIEF UNDER NEW YORK STATE LAW NEGLIGENT
INFLICTION OF EMOTIONAL DISTRESS**

153. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
154. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable

bounds of decency.

155. The aforementioned conduct was negligent and caused severe emotional distress to Plaintiffs Mervat and Mohammed.

156. The aforementioned conduct was committed by employees, servants and/or agents of Defendants while acting within the scope of their employment.

157. The aforementioned conduct was committed by employees, servants and/or agents of Defendants while acting in furtherance of their employment.

158. As a result of the aforementioned conduct, Plaintiffs Mervat and Mohammed suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

159. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial

EIGHTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
PRIMA FACIE TORT

160. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

161. Defendants by the aforesaid conduct, inflicted harm upon Plaintiffs Mervat and Mohammed.

162. The aforesaid conduct of Defendants was intentional.

163. The aforesaid conduct of Defendants was without any excuse or justification

164. As a result of the conduct of Defendants, Plaintiffs Mervat and Mohammed sustained, *inter alia*, severe emotional distress, embarrassment, and humiliation, deprivation of their constitutional rights, and special damages.

165. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial

NINTH CLAIM FOR RELIEF UNDER NEW YORK STATE LAW
NEGLIGENT HIRING AND RETENTION

166. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

167. Upon information and belief, Defendants failed to use reasonable care in the hiring and retention of the employees who caused Plaintiffs Mervat and Mohammed to be arrested and prosecuted by the NYPD.

168. Defendants knew, or should have known in the exercise of reasonable care, the propensities of said employees to engage in the wrongful conduct heretofore alleged in this Complaint.

169. As a result of the conduct of Defendants, Plaintiffs Mervat and Mohammed sustained, *inter alia*, severe emotional distress, embarrassment, and humiliation, deprivation of their constitutional rights, and special damages.

170. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial

TENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT TRAINING AND SUPERVISION

171. Plaintiffs Mervat and Mohammed repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

172. Upon information and belief, Defendants failed to use reasonable care in the training

and supervision of the aforesaid employees who caused Plaintiffs Mervat and Mohammed to be harmed.

173. As a result of the conduct of Defendants, Plaintiffs Mervat and Mohammed sustained, *inter alia*, severe emotional distress, embarrassment, and humiliation, deprivation of their constitutional rights, and special damages.

174. As a result of Defendants' impermissible conduct, Plaintiffs Mervat and Mohammed demand judgment against Defendants in a sum of money to be determined at trial

PRAYERS FOR RELIEF

WHEREFORE, Plaintiffs Mervat and Mohammed request that this Court grant the following relief:

- a. Issue a declaratory judgment declaring that the acts, omissions, policies and practices of Defendants with regard to religiously observant individuals who are arrested and wear the respective religious attire, violate the United States Constitution;
- b. Enjoin Defendants, their agents, officials, employees and all persons acting in concert with them, under color of State law or otherwise, from continuing the unconstitutional and illegal acts, conditions and practices described in this Complaint;
- c. Order Defendants, their agents, officials, employees, and all persons acting in concert with them, under color of State law or otherwise to take all necessary actions to provide policies, practices and training that ensure that Plaintiffs and those similarly situated will not be subject to violations of their religious freedom at the time of arrest and thereafter;
- d. Order Defendants to develop and implement a comprehensive plan for the correction of the unlawful policies, practices, acts and omissions complained of herein and to

submit this plan to the Court and to the attorneys for the Plaintiffs for review and comment before the Court orders the plan;

- e. Award Plaintiffs compensatory and punitive damages in an amount to be determined at trial against Defendants for violations of federal constitutional rights;
- f. Retain jurisdiction in this case until the unlawful conditions, practice, policies, acts and omissions complained of herein no longer exist and this Court is satisfied that they will not recur;
- g. Award Plaintiffs the costs of this action, including reasonable attorneys' fees and
- h. Grant such other and further relief as this Court deems just and proper.

Dated: New York, NY
September 1, 2015

Respectfully Submitted,

/S/

THE ABOUSHI LAW FIRM, PLLC
By: Tahanie A. Aboushi, Esq. (TA6529)
Attorneys for Plaintiff
1441 Broadway Suite 5036
New York, NY 10018
Telephone: (212) 391-8500
Facsimile: (212) 391-8508
tahanie@aboushi.com

By: _____
Tahanie A. Aboushi, Esq (TA-6529)